



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

NOV 23 2004

DOT-E 13080
(FIRST REVISION)

EXPIRATION DATE: June 30, 2005

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Pressed Steel Tank Co.
Milwaukee, WI
2. PURPOSE AND LIMITATIONS:
 - a. This exemption authorizes the manufacture, marking, sale and use of a non-DOT specification cylinder conforming with ISO Standard 9809-3, except as specified herein, for the transportation in commerce of the materials authorized by this exemption. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
 - c. Party status will not be granted to this exemption.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.304 and 180.209 in that a non-DOT specification cylinder is not authorized except as specified herein.

5. BASIS: This exemption is based on the application of Pressed Steel Tank Co. dated July 18, 2003, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Sulfuryl fluoride	2.3	UN2191	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification seamless steel cylinder as shown on Pressed Steel Tank Co. drawing number A10CL150BB-UN, Rev. 0 dated March 14, 2002 and the supporting documentation on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). Additionally, the cylinder meets all the requirements of ISO Standard 9809-3:2000 (Gas Cylinders - Refillable seamless steel gas cylinders - Design, construction and testing - Part 3: Normalized steel cylinders) except as follows:

(1) Each cylinder made under this exemption is limited to the material in section 6.2.1 and chemical composition tolerances of Table 1 in the ISO Standard 9809-3:2000.

(2) Each cylinder must be fitted with pressure relief device in accordance with CGA Pamphlet S-1.1.

(3) Cylinder valves must be protected, using caps, shrouds or guards from damage which could cause inadvertent release of the contents of the cylinder. Caps, shrouds or guards, must meet the performance requirements of ISO Standard 11117:1998 (Gas Cylinders - Valve Protection Caps and Valve Guards for industrial and medical gas cylinders - Design, construction and tests).

b. TESTING - Each cylinder must be periodically inspected and tested at least once every five years in accordance with ISO Standard 6406-2003 (Gas cylinders - Seamless steel gas cylinders - Periodic inspection and testing). The retest facility must have a current retester identification number approval issued by OHMEA. Additionally, if ultrasonic examination (UE) is used the retest facility must be approved by OHMEA for UE.

c. MANUFACTURE - The manufacturer of a cylinder under this exemption must secure an approval in accordance with the applicable provisions of 49 CFR Part 107., Subpart H.

d. INSPECTION - Compliance with the requirements of §§ 178.35 and 107.803, is required before production of containers under this exemption.

e. MARKING - Each cylinder must be stamped "DOT-E 13080" and with other marks as approved in writing by the OHMEA in letters and figures at least 5 mm (0.20 inch) high into the metal of valve end. As a minimum, markings must include the following:

(1) The date of the initial inspection, the year (four digits) followed by the month (two digits) separated by a slash (i.e. "/");

(2) The test pressure in bar, preceded by the letters "PH" and followed by the letters "BAR";

(3) The manufacturer's mark registered by the OHMEA;
and

(4) The serial number assigned by the manufacturer.

f. OPERATIONAL CONTROLS - Each cylinder must remain in dedicated product service for its entire life.

8. SPECIAL PROVISIONS:

a. The manufacturer of the cylinders covered by this exemption must retain the test reports required by this exemption for as long as the cylinders are authorized for use under this exemption plus one year.

b. A copy of the Inspector's report for each of the first three lots produced must be submitted to the OHMEA prior to shipment.

c. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this exemption for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this exemption.

d. A person who is not a holder of this exemption, but receives a package covered by this exemption, may reoffer it for transportation provided no modification or change is made to the package or its contents and it is offered for transportation in conformance with this exemption and the HMR.

e. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

f. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Exemptions and Approvals for a specific manufacturing facility.

g. A current copy of this exemption must be maintained at the facility where the package is manufactured under this exemption. It must be made available to a DOT representative upon request.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight and cargo vessel.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle and cargo vessel used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
 - o Persons operating under the terms of this exemption must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

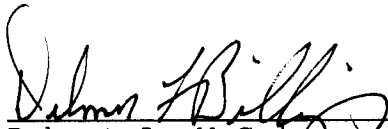
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

Issued in Washington, D.C.:



for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

NOV 23 2004

Date

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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